

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201501207	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/11/2015 8:15 PM	Location of Incident: 96 Ampere Avenue	18 Mo. SOL 8/11/2016	Precinct: 45		
Date/Time CV Reported Fri, 02/20/2015 9:04 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/20/2015 9:04 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Jason Isaia	19320	933819	045 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Mario Rodriguez	26660	886389	045 PCT		
2. POM Frank Malafronte	02716	937009	045 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . POM Jason Isaia	Off. Language: PO Jason Isaia made remarks to § 87(2)(b) based upon race.		A . Unsubstantiated		

Case Summary

On February 20, 2015, § 87(2)(b) filed this complaint by phone with the CCRB.

On February 11, 2015, § 87(2)(b) was pulled over by PO Jason Isaia, PO Mario Rodriguez, and PO Frank Malafronte, for running a stop sign. PO Isaia approached § 87(2)(b) on the driver's side of her car and asked for her license and registration. § 87(2)(b) nervously fumbled with her wallet and took a long time to produce her license. PO Isaia asked her if she had her license and § 87(2)(b) said she did. PO Isaia responded by saying, "Ya'll Niggers lie" (**Allegation A**).

§ 87(2)(b) was issued a summons for the stop sign violation and she left the scene (encl. 3d).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) initially accepted mediation and the case forwarded to the mediation unit on April 2, 2015. However, PO Isaia rejected mediation and the case was returned to the undersigned investigator for investigation on May 5, 2015. On June 16, 2015, a Notice of Claim check was filed with the NYC Comptroller's Office (encl. 10d). A response is pending. § 87(2)(b) [§ 86(1)(2)(iv)] § 87(2)(g)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. 1b).
- PO Isaia has been a member of the NYPD for 11 years. He has two prior CCRB allegations, neither of which was substantiated. § 87(2)(g)

Allegations and Recommendations

Allegation A – Offensive Language: PO Jason Isaia made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that a frustrated PO Isaia told her, "Ya'll Niggers lie" when she had trouble producing her license (encl. 3d).

PO Isaia stated that upon stopping § 87(2)(b) she was initially very calm. He had no trouble obtaining her license and brought her information back to the squad car where one of his partners, PO Rodriguez, wrote her a summons for failing to yield at a stop sign. It was only when he brought the summons to § 87(2)(b) that she became very angry and claimed that the officers only gave her a ticket because she was black. PO Isaia stated he never said, "Ya'll Niggers lie" to § 87(2)(b) (encl. 5e).

PO Malafronte § 87(2)(g) states § 87(2)(b) claimed she was only receiving the summons because of her race. PO Malafronte was at the passenger's side of the car when PO Isaia spoke to § 87(2)(b) through the driver's side window and did not hear PO Isaia utter the offensive statement, or use any offensive language at all (encl. 6f).

PO Rodriguez was inside of the patrol car during the initial stop, but came out of the patrol car and witness § 87(2)(b)'s statement about her receiving the ticket because she was black. He tried to explain that it was actually he who wrote her the summons, but § 87(2)(b) did not listen. PO Rodriguez did not hear PO Isaia utter the offensive statement (encl. 4g).

An attempt was made to contact § 87(2)(b) in order to speak with her § 87(2)(b) daughter, however, § 87(2)(b)'s phone number is no longer in service. A CLEAR search provided no additional contact information (encl. 8a-8d). On June 12, 2015, a letter was sent to § 87(2)(b) but to date no response has been received (enc. 10c).

§ 87(2)(g)
§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as ***unsubstantiated***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date